

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----x
DANIEL ORNEAS,

Plaintiff,

-VS-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER BORIS DURETS, SGT. KEVIN
DEVINE and POLICE OFFICER JOHN DOES
1-2,

Defendants
-----x

To the above-named Defendant(s):

You are hereby summoned to answer the complaint in this action and serve a copy of your answer, or, if the complaint is not served with this summons, to serve a written notice of appearance on the Plaintiff's attorney within 20 days after service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York): and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demand herein.

Dated: August 27, 2013



SPENCER A. LEEDS, ESQ.

Attorney for Plaintiff
26 Court Street, Suite 2100
Brooklyn, New York 11242
(718) 488-8255

Defendants' Addresses:

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza, Room 1406
New York, New York 10006

POLICE OFFICER BORIS DURETS, Shield No. 9162
69th Precinct
9720 Foster Avenue
Brooklyn, New York 11236

SERGEANT KEVIN DEVINE, Shield No. 00509
69th Precinct
9720 Foster Avenue
Brooklyn, New York 11236

NOTICE: The nature of this action is a civil rights action which occurred
in Kings County, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DANIEL ORNEAS,

-vs-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
BORIS DURETS, Shield Number 9162, SERGEANT
KEVIN DEVINE, Shield Number 00509, and POLICE
OFFICER JOHN DOES 1-2,

Defendants.
-----X

VERIFIED COMPLAINT

Index No.: _____

FILED: _____

Plaintiff, by attorney SPENCER A. LEEDS, complaining of the defendants,
respectfully states and alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times herein mentioned, plaintiff was and is a resident of the County of Kings and the State of New York.
2. Upon information and belief, and at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation organizing and existing by virtue of the laws of the State of New York.
3. Upon information and belief, and at all times hereinafter mentioned, defendant, THE NEW YORK CITY POLICE DEPARTMENT, was a fully authorized police and law enforcement agency of and for the defendant, THE CITY OF NEW YORK, and was formed, staffed, governed and acting under the auspices and control of defendant, THE CITY OF NEW YORK.
4. That before commencement of this action, on or about April 16, 2013, a notice of claim and demand together with a notice of intention to sue against the defendants, THE CITY OF

NEW YORK, and THE NEW YORK CITY POLICE DEPARTMENT, for damages sustained by the plaintiff, DANIEL ORNEAS, for injuries and/or damages herein alleged resulting from the false arrest, false imprisonment, violation of civil rights and negligence of the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, et al., at the time when and at the place where the injuries were received, was served upon THE CITY OF NEW YORK, within ninety (90) days after such cause of action accrued, and that more than thirty (30) days have elapsed since the notice of claim and demand together with the notice of intention to sue was so served, and the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, et al. have neglected and refused to pay, settle, adjust and compromise the claim of the plaintiff.

5. That the plaintiff's action was commenced within one year and ninety days after the cause of action therefor occurred.

6. That the plaintiff submitted to an inquiry concerning the justice of his claim on or about August 9, 2013, and was willing to but has not been examined by a doctor representing the defendants.

7. On or about February 9, 2012, plaintiff, DANIEL ORNEAS, was lawfully and properly operating a motor vehicle in the vicinity of 929 East 80th Street, Brooklyn, New York.

8. At the aforementioned date, time and place, plaintiff was physically assaulted and ultimately arrested by several police officers from THE NEW YORK CITY POLICE DEPARTMENT including the above-named individual police officers Boris Durets and Kevin Devine, together with John Does 1 and 2.

9. At the aforementioned date, time and place, defendants maliciously, wrongfully and unlawfully confined plaintiff against his will. Thereafter, defendants caused the plaintiff to be detained in various facilities maintained and controlled by defendants.

10. The arrest and detention of the plaintiff by the defendants was without any just cause or provocation whatsoever.

11. The false arrest, unjust detention and false imprisonment of the plaintiff by the defendants CITY OF NEW YORK, through its agents, servants and employees and the police officers named and unnamed herein was negligent, careless, reckless, willful, wanton and malicious.

12. Said negligence consisted of, *inter alia* : (a) improperly and carelessly initiating and precipitating a police confrontation with plaintiff which was unwarranted under all the circumstances and in violation of the restrictions and commonly accepted practices of the New York City Police Department; (b) improperly engaging in and conducting a physical detention and arrest of plaintiff which was unwarranted under all the circumstances and in violation of the restrictions and commonly accepted practices of the New York City Police Department; (c) the failure of the other police officers at the scene to either intervene when it was clear that the decision to arrest plaintiff was improper and without cause, or otherwise take the necessary actions to prevent the assault, wrongful arrest and detention of plaintiff.

13. THE CITY OF NEW YORK was further careless, negligent and reckless in failing to develop proper guidelines and rules of the defendant NEW YORK CITY POLICE DEPARTMENT governing the conduct of police on the issue of what constitutes an unlawful arrest and detention, and in failing to use reasonable care in the employment, training and supervision of its police officers in properly determining whether an arrest and detention are unlawful.

14. Upon information and belief, the limitations on liability set forth in the CPLR Article 16 do not apply to this action since it is exempt pursuant to Section 1602 of the CPLR.

15. That as a result of the foregoing, plaintiff, DANIEL ORNEAS, was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

16. Plaintiff, DANIEL ORNEAS, repeats, reiterates and alleges paragraphs 1 through 15 of the First Cause of Action with the same force and effect as though each aforesaid paragraph was

more fully set forth at length herein.

17. On or about February 9, 2012, and for an extended period thereafter, the defendants charged the plaintiff, DANIEL ORNEAS, with various crimes, including Reckless Endangerment in the Second Degree, Resisting Arrest, Reckless Driving and Disorderly Conduct, and that said defendants, including the police officers named and unnamed that were present during plaintiff's arrest and subsequent incarceration engaged in the actions and conduct alleged herein in their official capacity as New York City police officers and under color and authority of State law, regulation, ordinance, custom and usage.

18. That such actions served to deprive plaintiff of the rights and privileges of the United States Constitution, the Fourteenth Amendment of the U.S. Constitution and Section 1983 of 42 U.S.C. In particular, he was deprived of his right to due process of law, of his right to happiness and to liberty.

19. That on or about February 21, 2013, under Kings County Criminal Court docket number 2012KN011485. All enumerated charges against plaintiff were dismissed, and the matter was Adjourned in Contemplation of Dismissal ("ACD"), and sealed six months thereafter.

20. By reason of the foregoing, plaintiff was wrongfully and unlawfully arrested and detained without just cause for a period of approximately 24 hours following his arrest.

21. The false arrest, unjust detention and false imprisonment of the plaintiff by the defendants were negligent, reckless, willful, wanton and malicious.

22. The plaintiff was unlawfully arrested without his consent and without probable cause or other legal privilege or justification.

23. The plaintiff was conscious and aware that he was being unlawfully arrested and was harmed by the false arrest and imprisonment.

24. That as a result of the foregoing, plaintiff, DANIEL ORNEAS, was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

25. Plaintiff, DANIEL ORNEAS, repeats, reiterates and re-alleges paragraphs 1 through 15 of the First Cause of Action and paragraphs 16 through 24 of the Second Cause of Action with the same force and effect as though each aforesaid paragraph was more fully set forth at length herein.

26. By reason of the false arrest and unjustified detention of the plaintiff by the defendants, the plaintiff sustained personal injuries, both physical and mental, rendering the plaintiff disabled and requiring the plaintiff to undergo medical care and to incur medical expenses.

27. That as a result of the foregoing, plaintiff, DANIEL ORNEAS, was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

28. Plaintiff, DANIEL ORNEAS, repeats, reiterates and realleges paragraphs 1 through 15 of the First Cause of Action, paragraphs 16 through 24 of the Second Cause of Action and paragraphs 25 through 27 of the Third Cause of Action with the same force and effect as though each aforesaid paragraph was more fully set forth at length herein.

29. The above-stated occurrence and damages to the plaintiff were due to the negligence of defendant, THE CITY OF NEW YORK, its agents, servants and/or employees and/or THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees, including those named and unnamed herein.

30. By reason of the negligence, carelessness, wrongful acts and omissions of the defendant herein resulting in plaintiff's unlawful arrest and imprisonment, the plaintiff suffered and will continue to suffer great physical, emotional, mental and psychological pain.

31. That as a result of the foregoing, plaintiff, DANIEL ORNEAS, was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

32. Plaintiff, DANIEL ORNEAS, repeats, reiterates and realleges paragraphs 1 through 15 of the First Cause of Action, paragraphs 16 through 24 of the Second Cause of Action, paragraphs 25 through 27 of the Third Cause of Action and paragraphs 28 through 31 of the Fourth Cause of Action with the same force and effect as though each aforesaid paragraph was more fully set forth at length herein.

33. Plaintiff, DANIEL ORNEAS, was beaten, battered, assaulted, punched, kicked and struck by police officers of defendant, THE NEW YORK CITY POLICE DEPARTMENT, all without any justification, resulting in plaintiff sustaining severe and permanent physical, psychological and emotional injuries and violating his civil rights.

34. That as a result of the foregoing, plaintiff, DANIEL ORNEAS, was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against the defendants on all five causes of action in an amount which exceeds the jurisdictional limits of all courts of lesser monetary jurisdiction, together with interest, costs and disbursements of this action.

Dated: Brooklyn, New York
August 27, 2013

By: 
SPENCER A. LEEDS, ESQ.
Attorney for Plaintiff
26 Court Street, Suite 2100
Brooklyn, New York 11242
(718) 488-8255

VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF KINGS)

I, the undersigned, being duly sworn, say that I have read the foregoing Complaint, and know the contents thereof, and the same is true to my own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters I believe them to be true.

Dated: Brooklyn, New York
 August 27 , 2013



DANIEL ORNEAS

Sworn to before me on
this 27th day of
August , 2013



Notary Public

PAUL WILLIAM HOLLEY
NOTARY PUBLIC, State of New York
No. 02HO6262120
Qualified in Kings County
Commission Expires May 21, 2016



1. Place cover this side up top of first page of document. Staple as indicated.



2. Lift bottom of cover up and over top, folding on top score line.



3. Fold cover down behind paper on remaining score line.

Note: Address area on back middle panel appears in window in a No. 10 envelope

STATE OF NEW YORK, COUNTY OF

SS.:

I, the undersigned, an attorney admitted to practice in the courts of New York State,

☐ Certification By Attorney certify that the within
☐ Attorney's Affirmation state that I am
the attorney(s) of record for
action: I have read the foregoing
the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by

in the within
and know the contents thereof;

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated:

.....
The name signed must be printed beneath

STATE OF NEW YORK, COUNTY OF

SS.:

I, the undersigned, being duly sworn, depose and say: I am

☐ Individual Verification in the action; I have read the foregoing
and know the contents thereof; the same is true to my own knowledge, except
☐ Corporate Verification as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true.
the of
a corporation and a party in the within action, I have read the foregoing
and know the contents thereof; and the same is true to my own knowledge,
except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true. This
verification is made by me because the above party is a corporation and I am an officer thereof.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Sworn to before me on

.....
The name signed must be printed beneath

STATE OF NEW YORK, COUNTY OF

SS.:

(If more than one box is checked—indicate after names type of service used.)

I, the undersigned, being sworn, say: I am not a party to the action, am over 18 years of age and reside at

On I served the within

☐ Service By Mail by mailing a copy of each of the following persons at the last known address set forth after each name below.
☐ Personal Service on Individual by delivering a true copy of each personally to each person named below at the address indicated. I knew each person served
to be the person mentioned and described in said papers as a party therein:
☐ Service by Electronic Means by transmitting a copy to the following persons by ☐ FAX at the telephone number set forth after each name below ☐ E-MAIL
at the E-Mail address set forth after each name below, which was designated by the attorney for such purpose, and by mailing a
copy to the address set forth after each name.
☐ Overnight Delivery Service by dispatching a copy by overnight delivery to each of the following persons at the last known address set forth after each name
below.

Sworn to before me on

.....
The name signed must be printed beneath

DANIEL ORNEAS,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
BORIS DURETS, SERGEANT KEVIN DEVINE
and POLICE OFFICERS JOHN DOES 1-2, Defendants

VERIFIED COMPLAINT

SPENCER A. LEEDS, ESQ.

Attorney(s) for Plaintiff

Office and Post Office Address, Telephone

26 COURT STREET
SUITE 2100
BROOKLYN, NEW YORK 11242
(718) 488-8255

To

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Attorney(s) for

Dated:

PLEASE TAKE NOTICE:

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ NOTICE OF SETTLEMENT

that an order
will be presented for settlement to the HON.
within named Court, at
on at M.
Dated,
of which the within is a true copy
one of the judges of the
Yours, etc.
SPENCER A. LEEDS, ESQ.